

KAMMER v. MADDERRA et al

22CV46324

PLAINTIFF'S MOTION TO STRIKE DEFENDANTS' ANSWER

This is a civil action involving allegations of malfeasance associated with an unrealized joint venture between plaintiff and defendant(s) to invest in property. The operative pleading is the original verified complaint, which includes eight (8) causes of action. Defendant Madderra filed an answer on behalf of himself (but not on behalf of his construction company) on 01/18/23, but that answer was not verified.

Before the Court this day is a motion by plaintiff to strike the unverified answer. The original notice for the motion was defective. See Local Rule 3.3.7. A timely amendment was served and filed. No opposition is noted, though defendant did recently attempt to cure the defect by filing a stand-alone verification (which the clerk's office rejected).

Pursuant to CCP §§ 435 and 436, a party may move for an order striking a pleading "not drawn in conformity" with laws, rules or orders. (See also *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) Pursuant to CCP §446, "when the complaint is verified, the answer shall be verified." Since defendant's answer was not verified, it was not drawn in conformity with law, and subject to a motion to strike. Although counsel's §435.5 efforts to meet and confer prior to filing consisted of just one terse email, this Court will find it sufficient for present purposes.

Motion to strike defendant's answer filed 01/18/23 is GRANTED, but defendant shall have 30 days in which to file a proper answer. Defendant is also reminded that while a default has already been entered as to the entity, any appearance on behalf of the entity (if it is indeed an entity) must be made by a licensed attorney.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff is ordered to serve and file a proposed order consistent herewith and CRC 3.1312.